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Case Number: 24SMCV05039 Hearing Date: July 16, 2026 Dept: P

Tentative Ruling

Steven

Weinberg et al. v. Sit 'n Sleep, Inc., et al., Case No. 24SMCV05039

Integrated

Bedding Group's Demurrer with Motion to Strike

Hearing

Date: July 16, 2026

Background

Plaintiffs

Steven Weinberg and Becky Weinberg, in pro per, sued Defendants Sit 'n Sleep, Inc.; Kingsdown, Inc.; Integrated Bedding Group ("IBG") for failing to repair or replace a mattress that Plaintiffs allege was covered by defendants' warranty. (Second Amended Complaint ("SAC"), ¶ 31-33.)

Plaintiffs

settled with Defendants Sit 'n Sleep, Inc. and Kingsdown, Inc. in April and July 2025, respectively.

On

September 2025, Plaintiffs filed the first amended complaint (FAC) against IBG in alleging negligence, trespass, fraud, negligent misrepresentation, and unfair business practices. (FAC, p. 1.)

On

January 13, 2026, the Court granted IBG's demurrer to Plaintiffs' FAC with leave to amend.

On

February 10, 2026, Plaintiffs filed the SAC.

On

March 17, 2026, IBG filed a demurrer with motion to strike to Plaintiffs' claims for violation of the UCL based on an alleged violation of Civ. Code § 1793.2, intentional interference with contractual relations, negligent interference with contractual relations, fraud, and trespass. IBG also moves to strike paragraphs 2, 5-14, 25, 28-30, 32-34, 36, 37, 39, 41-61, 65-71, 73, 75-81, 84, 86-94, 98-100, 102, 103, 105, 1006, 108, 109-112, 114, the prayer for relief, and Exhibits A and B. On July 2, 2026, Plaintiffs filed opposition. On July 9, 2026, IBG replied.

Arguments

IBG

argues that Plaintiffs' new factual allegations are conclusory and that their complaint remains deficient after the first demurrer. IBG argues that Plaintiffs' claim for violation of the UCL fails because the cited violation of the Song-Beverly Consumer Warranty Act applies to the manufacturer, not a service-provider like IBG. (SAC, p. 10-12.) IBG next argues that Plaintiffs' claim for intentional interference with contractual relations fails because Plaintiffs' allegation that IBG has replaced over 500 mattresses over a fifteen-month period shows no intent, certainty, or substantial certainty that an interference would occur. (Id. at p. 14.) IBG also argues that there is no cause of action for negligent interference with contractual relations. (ID. at pp. 14-15.) IBG argues that Plaintiffs' fraud claims are insufficiently specific and argues that Plaintiffs cannot state a claim for trespass because there was a consensual entry. Finally, IBG argues that there is no public enforcement action or injunctive relief available under Plaintiffs' claims.

In

opposition, Plaintiffs argue that the complaint alleges that "IBG's entire business model depends on substituting a sham inspection for the mandated 'service, repair, or pickup' that California consumer law requires. . . Plaintiffs allege IBG has illegally institutionalized this business model

throughout California.” (Opposition, p. 1.) Plaintiffs argue that the complaint alleges that IBG is liable under the Song-Beverly Consumer Warranty Act for intentionally assisting or profiting from someone else’s unlawful business practices. (Id. at p. 2.) Plaintiffs argue that the complaint adequately states claims for unfair and fraudulent business practices. (Id. at p. 4.) Plaintiffs argue that class certification is not required to obtain injunctive relief, and that injunctive relief is authorized under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945. (Id. at p. 7.) Plaintiffs argue that the complaint’s allegation that the SAC alleges facts leading to the reasonable inference that IBG’s inspection process was engineered to deny warranty claims, and that the SAC states a claim for intentional interference with contractual relations. (Id. at p. 8.) Plaintiffs acknowledge that there is no independent claim for negligent interference with contractual relations but argue that the complaint nonetheless states a claim for negligence, ‘misfeasance,’ or ‘active misconduct.’ (Id. at p. 9.) Plaintiffs argue that their fraud claim is sufficiently pled, and that the complaint states a claim for trespass because it claims that IBG manufactured Plaintiffs’ consent through fraud. (Id. at p. 11-12.) Finally, Plaintiffs argue that IBG prematurely raises attorneys’ fees issues and requests leave to amend if the demurrer is sustained.

In reply, IBG contends that Plaintiffs do not allege an actual violation of the law to substantiate a claim under the UCL, arguing that Plaintiffs cannot ‘borrow’ a statute to create an independent cause of action against IBG under a law that does not apply to it. (Reply, p. 2.) IBG then argues that Plaintiffs’ opposition does not address how Defendants’ job titles created any type of reliance and that it misrepresents the complaint’s allegations and adds allegations that are not in the SAC. (Id. at pp. 4-5.) IBG argues that class action certification is required under proposition 64 and that *McGill* is inapplicable to Plaintiffs’ UCL claim. IBG argues that Plaintiffs’ second cause of action fails because Plaintiffs have not alleged any independent wrongful acts. IBG argues that Plaintiffs’ third cause of action fails because it does not exist. IBG argues that the SAC does not allege that IBG fraudulently obtained Plaintiffs’ consent to enter their property.

Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968,

994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Analysis

Procedure

a. Meet and Confer

The parties met and conferred on March 16 and 17, 2026, by email. IBG filed the demurrer on March 17, 2026, the same day that Mr. Weinberg responded to IBG’s meet-and-confer email. (Dolan Decl., Exhibit B, p. 1.) This is insufficient meet-and-confer. Failure to meet and confer, however, is not grounds for overruling a demurrer.

Merits

a. Violation of the Unfair Competition

Law

i.

Unlawful

Business Practices

Under

the unlawful business practices prong of a violation of the Unfair Competition Law, a complaint states a claim if it claims a violation of “almost any federal, state, or local law.” *People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes* (2006) 139 Cal.App.4th 1006, 1016 [“An ‘unlawful’ practice requires violation of another statute, and a business practice may be ‘unfair’ even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law.”]

A

claim under the UCL for unlawful business practices must be based on a violation of a statute. Here, Plaintiffs’ cited section of the Song-Beverly Act applies only to manufacturers of consumer goods. (SAC, ¶ 20; Civ. Code § 1793.2 [“Every manufacturer of consumer good sold in this state and for which the manufacturer has made an express warranty shall. . .” emphasis added].) Plaintiffs allege that Sit n Sleep and/or Kingsdown manufactured the mattress and issued the express warranty, not IBG. (Complaint, ¶ 22.) Therefore, the complaint does not describe a violation of a statute and does not state a claim for unlawful business practices under the UCL against IBG.

ii.

Fraudulent

Business Practices

A

claim under the UCL for fraudulent business practices does not need to be plead with the same level of specificity as a common-law fraud, but must allege individualized reliance on specific misrepresentations or false statements. (In re Tobacco II Cases (2009) 46 Cal.4th 298, 328.)

Plaintiffs’

SAC does not describe individualized reliance on specific misrepresentations. The SAC alleges generally that IBG markets itself as an “independent” in-home service provider, and made false representations, but only describes one specific statement: IBG represented that it would send a “service technician” to Plaintiffs’ home. (SAC, ¶¶ 26-27.) However, Plaintiffs do not allege that this representation was false. Rather, Plaintiffs allege that the IBG personnel who arrived at his home

failed to conduct a legitimate inspection of the mattress. (SAC, ¶¶ 31-33.) The SAC does not allege that IBG represented to Plaintiffs that it would conduct a legitimate inspection. In fact, the SAC alleges that Sit n Sleep, not IBG, issued the warranty on Plaintiffs' mattress and represented that it would service the mattress. (SAC, ¶¶ 22, 25.) Therefore, complaint does not state a claim for a violation of the UCL based on fraudulent business practices.

iii.

Unfair

Business Practices

"When a plaintiff who claims to have suffered injury from a direct competitor's "unfair" act or practice invokes section 17200, the word "unfair" in that section means conduct that threatens an incipient violation of an antitrust law, or violates the policy or spirit of one of those laws because its effects are comparable to or the same as a violation of the law, or otherwise significantly threatens or harms competition."

(Cel-Tech

Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187.)

The

defect in Plaintiffs' claim under the unfair prong of the UCL is similar to the defect in its claim for fraudulent business practices. Plaintiffs fundamentally do not describe any IBG conduct in its interaction with Plaintiff that violates the "policy or spirit" of any specific anti-competition laws. Plaintiffs' invocation of the Song-Beverly Act is not applicable to IBG. Plaintiffs do not identify any other underlying statute or policy that IBG violated. Plaintiffs' allegation that IBG's use of the terms "service technician" and "In Home Service Expert" was misleading does not describe any regulation of such terms or allege the individuals who serviced their mattress were not qualified to use those titles. The SAC does not allege unfair business practices under the UCL.

IBG's

demurrer to Plaintiffs claim for violation of the UCL is SUSTAINED.

b. Intentional Interference with

Contractual Relationship

To

state a claim for intentional interference with contractual relations, a complaint must allege facts showing that (1) Plaintiff had a valid and existing contract with a third party; (2) defendant had knowledge of the contract; (3) defendant committed intentional and unjustified acts designed to interfere with or disrupt the contract; (4) actual interference with or disruption of the relationship; and (5) resulting damages. (Davis v. Nadrich (2009) 174 Cal.App.4th 1, 10; Shamblin v. Berge (1985) 166 Cal.App.3d 118, 123. See also Sole Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 212, 238 [“Proof the interfering conduct was wrongful, independent from the interference itself, is not required to recover for interference with contractual relations.”])

IBG

argues that Plaintiffs do not allege facts showing that it intended to interfere with Plaintiffs' contract with Sit n Sleep and/or Kingsdown. Plaintiffs allege, however, that “IBG knew that performance of the warranty—service, repair, replacement, or pickup—would impose cost and burden on its retailer client. Rather than facilitate performance, IBG intentionally inserted itself into the contractual relationship to obstruct it.” (SAC, ¶¶ 66-67.) Plaintiffs allege that they had a warranty contract with Sit n Sleep; IBG knew about the contract; IBG intentionally disrupted the contract by “omit[ing] critical investigative steps,” and “generat[ing] a misleading report designed to justify denial,” among other things; and damaged Plaintiffs by depriving them of the benefits of the contract. (SAC, ¶¶ 63, 65, 67, 68, 72.) The SAC states a claim for intentional interference with a contractual relationship.

IBG

argues that Plaintiffs' claims concerning the number of mattresses it serviced undercut their claims that IBG intentionally interfered with Plaintiffs' contract. Plaintiffs are allowed to plead facts contextualizing their allegations. Plaintiffs' allegations about IBG's history do not warrant sustaining IBG's demurrer where Plaintiffs allege that IBG intentionally interfered with Plaintiffs' contract with Sit n Sleep and/or Kingsdown.

IBG's

demurrer to Plaintiffs' claim for intentional interference with contractual relationship is OVERRULED.

c. Negligent Interference with

Contractual Relations

The

parties agree that Negligent Interference with Contractual Relations is not an independent cause of action. In opposition to this demurrer, Plaintiffs seem to argue that their claim for Negligent Interference with Contractual Relations states a claim for misfeasance, malfeasance, or negligence. Plaintiffs do not describe the elements of an action for misfeasance or malfeasance, nor is the Court aware of an independent cause of action by that name. To the extent that Plaintiffs contend that this is a negligence claim, the SAC suffers from the same defects as the FAC: Plaintiffs allege that Sit n Sleep was IBG's client, Sit n Sleep denied Plaintiff's warranty claim because of IBG's report, and that IBG is liable for the Plaintiffs' harm because the injury was foreseeable. (SAC, ¶¶ 81-32.) The California Supreme Court has cautioned against relying too heavily on foreseeability in cases where there is no contractual privity and where the defendant's client is primarily responsible for the work's impact on the plaintiff. (*Bily v. Arthur Young & Co.*, supra, 3 Cal.4th at 403.) Plaintiffs do not identify any new or different caselaw finding a duty under circumstances similar to those described in the SAC.

IBG's

demurrer to Plaintiffs' claim for negligent interference with contractual relations is SUSTAINED.

d. Trespass

Trespass

occurs when Defendant intentionally, recklessly, or negligently enters onto property a plaintiff owns or controls without or in excess of permission and causes or is a substantial factor in causing harm. (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262 [citing *CACI* 2000].) A trespass may occur if a party has consent to enter but exceeds the limits of consent by conduct that diverges from the consent. (*Civic Western Corporation v. Zila Industries* (1977) 66 Cal.App.3d 1, 17.) Consent procured by fraud is invalid. (*Miller v. National Broadcasting Co.* (1986) 187 Cal.App.3d 1463, 1481.) A consensual entry becomes a trespass if the party entering exceeds the limit of consent while on the other's property. (*Civic Western Corporation v. Zila Industries*, supra, 66 Cal.App.3d at 17.)

The

SAC alleges that IBG entered Plaintiffs' property fraudulently with no "intention of performing an unbiased, legitimate or competent inspection of the mattress," and that "IBG entered Plaintiffs' property under false pretenses that it would comply with California law pertaining to warranty service for large items, thereby securing access through deception and fraud rather than informed consent." (SAC, ¶¶ 29-30.) However, like Plaintiffs' original complaint, the SAC does not allege that IBG's conduct on their property exceeded the scope of consensual entry. In a different context, the California Court of Appeal has described the boundaries of consent in a trespass action as follows:

"The purchase of the products with the resulting transfer of ownership and control to plaintiffs halts the directive flow of the product by defendants and takes these cases out of the trespass paradigm. It is the plaintiffs' property, voluntarily incorporated into the buildings with the plaintiffs permission, that is causing the harm, and thus, there is no third party interference sufficient to sustain trespass liability. . . That the product ends up on a person's land and is intended to be used on the land does not change the picture. All products end up in a physical location that is owned by someone. If they are defective and cause harm, the manufacturer will be liable under a variety of products liability theories but not for a wrongful entry or invasion upon the land." (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 315 [citing and applying Fibreboard Corp. v. Hartford Accident & Indemnity Co. (1993) 16 Cal.App.4th 492, 512 to a case alleging a trespass occurred when defendant applied lead paint to apartment interiors without informing of the danger associated with lead paint.])

Though this case is somewhat distinct, the same logic applies. In the above-cited cases, the plaintiffs alleged that their consent was fraudulently procured because the defendants misrepresented that asbestos and lead paint were safe. (County of Santa Clara v. Atlantic Richfield Co., *supra*, 137 Cal.App.4th at 315; Fibreboard Corp. v. Hartford Accident & Indemnity Co., *supra*, 16 Cal.App.4th at 512.) The Courts found no remedy in trespass because trespass is about acts taken on someone else's land, not the bad or misleading provision of services or products thereon. (*Ibid.*) Here, Plaintiffs likewise do not allege that IBG's actions on their property exceeded the mattress inspection that they agreed to. The allegation that IBG lied to gain entry to the property does not create an action in trespass.

IBG's

demurrer to Defendant's cause of action for trespass is SUSTAINED.

e. Fraud

IBG

alleges that Plaintiffs do not allege facts with particularity supporting their fraud and negligent misrepresentation allegations. Plaintiffs argue that they adequately plead reliance, falsity, intent, and resulting damage. (Opposition, p. 8.) In reply, IBG argues that Plaintiffs' allegations are conclusory. (Reply pp. 5-6.)

Plaintiffs

alleging fraud must describe, with particularity, the specific statements defendants made that constituted fraud, or facts defendants omitted that constitute alleged fraud. Pleadings must allege facts as to "how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73. Accord Wald v. Truspeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 393; Morgan v. AT & T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1262. Cf. also Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 783 ["conclusory allegations offer no facts at all and it is impossible to determine what was said or by whom or in what manner."].)

The

Court incorporates its analysis of the SAC in section a.ii. here. The SAC does not state a claim for fraud because it does not allege a misrepresentation with specificity.

IBG's

demurrer is SUSTAINED.

f.

Injunctive

relief and PAGA damages

Injunctive

relief is available on UCL claims. A prevailing plaintiff in a UCL lawsuit may also seek attorneys' fees under PAGA, Code Civ. Proc. § 1021.5. (Davis v. Ford

Motor Credit Co. (2009) 179 Cal.App.4th 581, 600.) Here, however, the Court has sustained IBG's demurrer to Plaintiffs' UCL claim. As such, the Court need not reach the issue of available remedies at this time.

g. Leave to amend

The

Court grants Plaintiffs leave to amend on all their claims except the trespass claim. The Court sustains the demurrers to those claims primarily for a lack of specificity. Plaintiffs contend that they can remedy this deficiency, so leave to amend is warranted. However, this is the second demurrer to Plaintiffs' trespass claim that the Court sustains for the same reason. Plaintiffs have had the opportunity to state facts showing that IBG's actions in their house exceeded the scope of Plaintiffs' consent and have not done so. Therefore, leave to amend is not warranted on Plaintiffs' trespass claim.

Conclusion

IBG's

demurrer to Plaintiffs' claims for violations of the UCL is SUSTAINED with leave to amend.

IBG's

demurrer to Plaintiffs' claim for intentional interference with contractual relations is OVERRULED.

IBG's

demurrer to Plaintiffs' claim for negligent interference with contractual relations is SUSTAINED with leave to amend.

IBG's

demurrer to plaintiffs' trespass claim is SUSTAINED without leave to amend.

Motion to Strike

IBG's

motion to strike Plaintiffs' claims for attorneys' fees and injunctive relief associated with their UCL claim is MOOT because the Court sustains IBG's demurrer to Plaintiffs' UCL claims with leave to amend.